PrimeLabel CONSULTANTS
The Leader in Food Labeling Since 1972

Best Practices: Aligning R&D, Marketing, & Legal on Food Claims





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Who We Are

Science and law work very well together.
That's why we present as a team.

Kantha Shelke, Ph.D.

- Food scientist / nutritionist & IFT Fellow.
- Principal, Corvus Blue LLC; Sr. Lecturer Johns Hopkins University Regulatory Sciences MS program.
- Bench science, matrix biology, and evidence evaluation that grounds every claim in defensible reality.

Ashish Talati

- FDA / FTC food and labeling attorney.
- Specializes in regulatory compliance, enforcement defense, and claim substantiation strategy.
- Translates the science into what regulators and plaintiffs' counsel actually scrutinize.

The dossier is the product. If it isn't documented, the claim isn't defensible.

Why This Session, Why Now

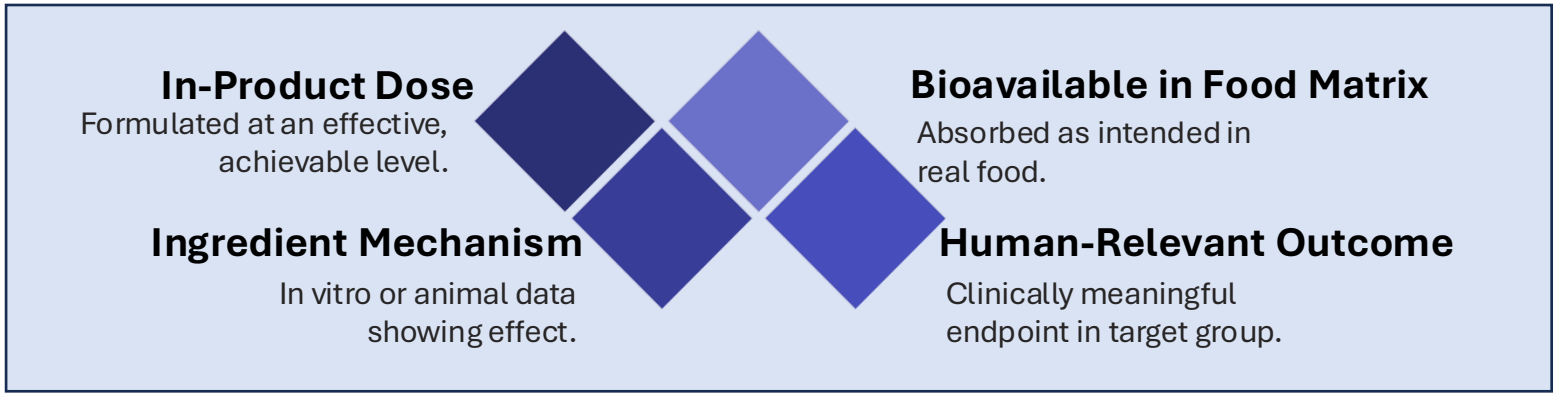
2026 is a convergence year with several federal & state streams arriving at once, reshaping the landscape for food marketers and scientists.

1. **Voluntary "Healthy" Adoption**
   New food-group model in effect April '25; mandatory compliance February '28
2. **FOP Rule Finalizing**
   FDA front-of-pack Nutrition Info box expected spring '26 — may be days old by talk date
3. **Synthetic Dye Phase-Out**
   Six petroleum-based dyes voluntarily phasing out by end of 2026; Red No. 3 removal accelerated
4. **GRAS Loophole Closing**
   FDA proposed rule (spring '26 Unified Agenda) would end self-affirmed GRAS; mandatory notification ahead
5. **UPF Definition in Development**
   FDA/USDA/HHS joint RFI closed Sept '25; uniform federal definition pending; state UPF laws advancing in parallel
6. **Unregulated Frontiers**
   "GLP-1 friendly" ships with no FDA standard; sustainability sits with state AGs as FTC stays silent

Avoid meeting claims late…on a mock-up. Leave with a shared vocabulary, a claim screen, and a current risk read.

Bench to Label: The Translation Gap

Most claim failures skip a rung or two. Every claim should check all four to be on the label.



Matrix & **dose** are critical | Ingredients work differently in isolation vs. in foods.

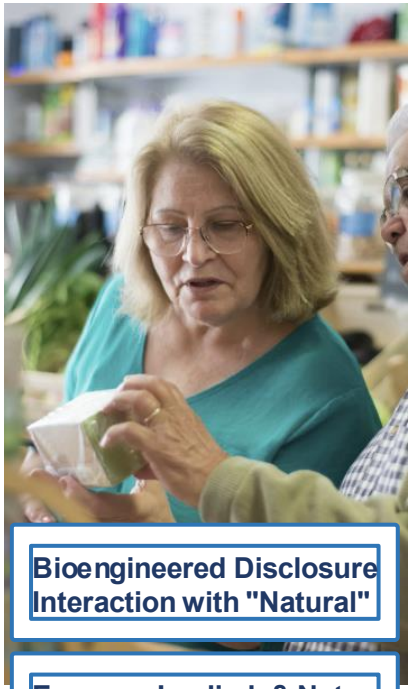
***In Vitro* Only** Lacks human translation	**Surrogate Endpoint** Biomarker shift ≠ clinical outcome	**Dose Mismatch** Study dose not achievable in serving	**Matrix Ignored** Bioavailability untested in food form
Underpowered Study Single small trial, no replication	**Post-Hoc Subgroup** Effect found in data mining, not design		

“Today’s Topics









- Added Sugar & Sugar-Alternative Claims
- "Natural" and "Clean"
- Rapid Fire: Litigation Themes
- Bioengineered Disclosure Interaction with "Natural"
- Food Dyes and the MAHA Ingredient-Ban Wave
- Protein and Satiety
- Gut Health & Immunity Claims
- Express, Implied, & Net-Impression Claims
- Influencer & AI-Generated Marketing Disclosure
- Sustainability and Environmental Claims
- The "Healthy" Rule Transition
- Front-of-Package "Nutrition Info Box"
- "GLP-1 Friendly": The Unregulated Category Everyone Is Shipping

Protein and Satiety



The underlying science

- **PDCAAS/DIAAS**: Quality, not just quantity, drives defensibility | DIAAS accounts for digestibility in a food matrix
- **Satiety mechanisms:** delayed gastric emptying, gut hormones (CCK & PYY) & amino acid (GLP-1) signaling to the brain
- Substantiate in food matrices for high-protein foods | extrapolation from isolated protein studies is incorrect

The claim spectrum: Same product, three labels

- **Nutrient Content:** “Excellent Source - 20 g protein per serving"
- **General Structure/Function:** “Supports muscle recovery"
- **Functional Satiety:** "Keeps you full longer"

Gut Health and Immunity Claims

Major claim categories involving distinct evidence bases, often conflated

Probiotics: Strain ≠ Species ≠ Category

Strain ≠ species ≠ category. A *Lactobacillus rhamnosus* GG study does not substantiate another strain. Category claims("probiotics support gut health") exceed the evidence.

Prebiotic ≠ Fiber ≠ "Supports Gut Health"

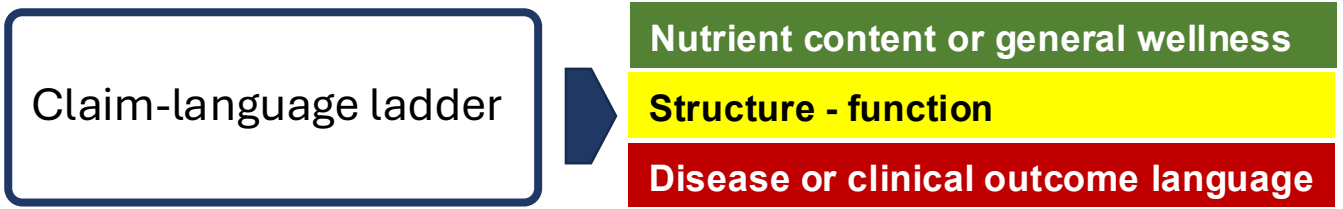
Three evidence bases, three standards. Conflating them is the most common substantiation gap here.

Immunity Surrogate Markers

Measurable ≠ meaningful. NK and sIgA shifts rarely predict clinical outcomes (the question regulators and NAD ask)

DSHEA Language Not Applicable to Conventional Foods

DSHEA S/F language ≠ conventional food claims. Substantiation and compliance risk.



Express, Implied, & Net-Impression Claims

The claim on the label is not the only claim. FTC & courts judge on **net impression,** the totality of what a reasonable consumer takes away from the entire package experience.

Three Layers of Every Package

1 Express Claim

The literal words on the label — "20 g protein," "no added sugar," "supports immune function." These are the claims brands typically substantiate.

2 Implied Claim

Front-of-pack imagery, color choices, certifications, and icons all build implied claims. A green leaf next to "natural flavors" implies something the text alone does not say.

3 Net Impression

What the reasonable consumer believes after seeing the whole package. This is the legal standard. The fine print rarely cures a deceptive net impression.

The Disclaimer Problem

The "one-click" / proximity rule: disclaimers must be ~~proximate and prominent to the claim they qualify.~~ Fine print on the back panel does not cure a bold front-panel implied claim.

FTC Standard

Human RCTs are preferred for health-related claims. The FTC Health Products Compliance Guidance is the operative document.

Influencer & AI-Generated Marketing Disclosure

Creator content and AI-drafted copy share the same compliance principle: **if the brand benefits, the brand owns the substantiation obligation.**

Creator / Influencer Posts

If a creator says it, the brand owns it.
FTC Endorsement Guides apply to all influencer content.
Material-connection disclosure is the recurring failure point — 2025–26 enforcement actions confirm the FTC is actively pursuing this.

AI-Drafted Marketing Copy

If AI drafts it, the brand owns the substantiation.
AI-generated copy can fabricate plausible-sounding claims and citations that the dossier cannot back.
A hallucinated study reference is a false advertising exposure.

The Cross-Functional Fix

Every external channel (creator posts, AI-drafted emails, paid social, influencer kits) must go through the claims register, not just the package.
The register is the single source of substantiated language.

Three substantiation gaps to audit: **Creator post** (material connection not disclosed) · **AI-drafted email** (claim not in dossier) · **Fabricated citation** (study does not exist or does not support the claim)

The “Healthy” Rule Transition

An updated definition of "healthy" replaces the nutrient-threshold model with a food-group model | The transition window is open now | Fortification can no longer rescue a claim.

Key Dates

- **Effective:** April 28, 2025
- **Mandatory Compliance:** February 25, 2028

Caveat: The FDA has noted it will assess whether changes are needed to align with the latest Dietary Guidelines; the rule may shift before the compliance date.

Winners and Losers

Gaining the claim: avocados, nuts, seeds, salmon, water, olive oil

Losing the claim: fortified white bread, highly sweetened cereal and yogurt, fortified fruit punch

The fortification trap: adding vitamins and minerals to an otherwise poor nutritional profile no longer qualifies a product as "healthy."

Strategic move: Use this transition to audit your entire "healthy"-claimed SKU portfolio now BEFORE the 2028 deadline creates a compliance crisis.

Front-of-Package “Nutrition Info Box”

FDA projects to issue a final rule on front-of-pack nutrition labeling in spring 2026.

What the Label Shows

Three nutrients on the principal display panel, each rated **Low / Med / High**:

- Saturated Fat
- Sodium
- Added Sugars

Compliance Timeline

$10M+ annual food sales: 3 years after the final rule's effective date

Under $10M annual food sales: 4 years after the final rule's effective date

The Strategic Opportunity

This label cycle and the "healthy" SKU audit are happening simultaneously. Brands that treat them as separate workstreams will face two redesign windows and two rounds of agency review, retailer approval, and print costs.

One redesign window, not two.

Align the FOP label update with the "healthy" compliance audit and execute once.

Added Sugar & Sugar-Alternative Claims

Sugar is the most politically charged nutrient on the 2026 regulatory agenda | the science, the label rules, and the litigation risk are all moving at once

FDA Nutrition Policy Priorities (2026)

Proposed front-of-package “Low/Med/High” added sugars labeling; continued focus on ingredient and menu labeling requirements; & ongoing evaluation of low- & no-calorie sweeteners and other non-nutritive sweeteners.

No Added Sugar" + "Healthy" Interaction

"No added sugar" claims interact directly with the new "healthy" thresholds. Audit both together — a product that qualifies for one may be disqualified by the other.

The DGA Position

The latest Dietary Guidelines took a strong line: *"No amount of added sugars or non-nutritive sweeteners is recommended or considered part of a healthy or nutritious diet."* This language will be cited in litigation.

Sugar-Alternative Labeling

Allulose, monk fruit, stevia, and sucralose are the next live area. Each has distinct regulatory status, labeling requirements, and consumer perception risk.

Claim-language gradient for sugar terms: **"No added sugar"** (defined, auditable) → **"Naturally sweetened"** (implied, no standard) → **"Guilt-free"** (net impression, litigation magnet)

"Natural" and "Clean"

Two of the most commercially powerful words in food marketing + two of the most legally exposed. Neither has a settled federal definition.

The Legal Landscape

"Natural": No formal definition for foods. The absence of a standard ≠ absence of risk; the plaintiffs' bar sets the standard.

"Clean label": No legal definition. What a reasonable consumer infers …is the litigation hook.

Class action volume continues on bioengineered ingredients, processing aids, and "no artificial" claims. 2025–26 settlement examples confirm the trend is accelerating.

The Cross-Functional Failure Mode

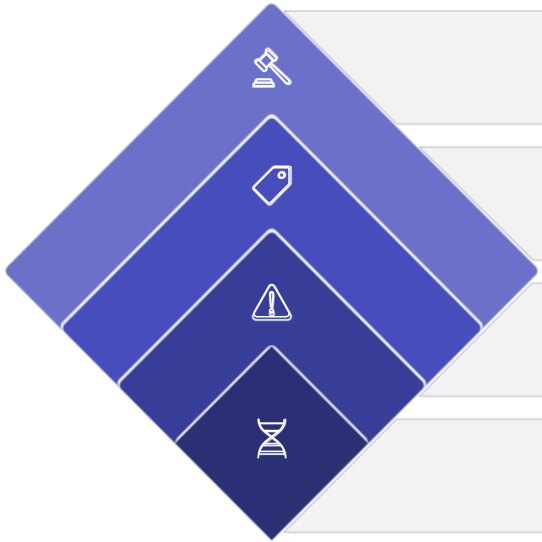
The most common "natural" claim failure is not a bad label decision | it's a **scale-up ingredient swap** that nobody routes back to claim review.

A processing aid changes at the supplier level. The spec sheet is updated. The label is not reviewed. The "no artificial ingredients" claim is now false. Brands only discover when a class action complaint arrives.

Every ingredient change order must land on the claims register, not just the spec sheet.

Bioengineered Disclosure Interaction with "Natural"

The National Bioengineered Food Disclosure Standard (NBFDS) creates a compliance obligation but does not create a safe harbor for parallel "natural" marketing.



Litigation Risk Level
Assess risk based on disclosure & claim

Label Says "Natural"
Assess class action suit risk

BE Disclosure Required
Yes → disclose as bioengineered

Detectable Modified Material?
Is modified genetic material detectable?

NBFDS Scope

Requires disclosure of detectable modified genetic material | the operative word is "detectable."

No Immunization

BE disclosure does not immunize parallel "natural" marketing. Class actions are targeting that exact pairing.

Refining Complexity

Process-induced non-detectability of BE material creates ambiguity in disclosure obligations & 'natural' claim exposure

Practical Posture

BE disclosure decisions and "natural" marketing must be reviewed together at the same approval gate — not in separate workstreams.

Food Dyes & the MAHA Ingredient-Ban Wave

Synthetic dye reform is outpacing rulemaking — driven by FDA nudges, industry pledges, and state action.

The Seven Dyes Under Pressure

Dye	Status
FD&C Red No. 3	FDA requesting early removal (before 2027–28 deadline)
Red 40	Voluntary phase-out by end of 2026
Yellow 5	Voluntary phase-out by end of 2026
Yellow 6	Voluntary phase-out by end of 2026
Blue 1	Voluntary phase-out by end of 2026
Blue 2	Voluntary phase-out by end of 2026
Green 3	Voluntary phase-out by end of 2026

The Enforcement Gap

FDA and the food industry have no *formal agreement; ONLY* an "understanding." State laws are filling the enforcement gap: West Virginia, California, & Texas have enacted /proposed warning label requirements.

Natural Color Replacement Science

New natural color additives — butterfly pea flower, gardenia blue, Galdieria extract, calcium phosphate — carry their own science questions on stability, sensory performance, and labeling.

Color-supplier change orders must land on the claims register, not just the spec sheet.

Sustainability and Environmental Claims

FTC Green Guides (2012) remain unrevised; state AGs and international regulators now set the operative standard.

The Operative Standards

California SB 343

Restricts chasing-arrows and "recyclable" claims. The operative standard for most national brands shipping into California (which is most national brands).

Proposed EU Green Claims Directive

Ratchets the global floor for any brand with EU distribution. Requires substantiation before the claim is made, not after a challenge.

FTC Green Guides

Still the federal baseline, albeit a 2012 vintage. The update is overdue and the gap between the Guides and current market claims is widening.

High-Risk Terms: No Settled Federal Standard

- "Carbon neutral"
- "Regenerative"
- "Sustainably sourced"
- "Eco-friendly"
- "Net zero"

Practical Posture

Substantiate to the most stringent jurisdiction you ship into — not the federal floor. For most national brands, that means California SB 343.

"GLP-1 Friendly": The Unregulated Category!

FDA has no standard; USDA approved label use for two major brands, then walked back any regulatory definition. The plaintiffs' bar is circling!

The Science Reality

- GLP-1 users eat ~50% less by volume but need the same nutrient density.
- Protein & fiber thresholds matter | But, no published consensus defines a "GLP-1 friendly" profile.
- No consensus = plaintiffs define the standard in court

Defensible vs. Risky Posture

🔴 **Risky:** "GLP-1 Friendly" is drug-adjacent inference, not defined, draws plaintiff interest.

🟢 **Defensible:** "20 g protein, 10 g fiber per serving" = specific, measurable, substantiable nutrient content claims

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Claim a specific nutrient profile. Not a drug-adjacent inference. The label should describe what the food *is*, not what drug it *complements*.

Conagra and Nestlé received USDA approval for "GLP-1 Friendly" labels | Yet, USDA simultaneously reiterated there is no regulatory standard for the term. Approval ≠ safe harbor.

Rapid Fire: Litigation Themes

High Protein/Wellness Positioning

Claim: “High protein,” “sustained energy,” or similar wellness claims where nutritional profile or implied physiological benefit is challenged.

Science gap: Nutrient content support does not automatically substantiate broader functional or wellness messaging.

Lesson: Nutrient content claims & functional benefit claims require separate substantiation strategies.

Probiotic / Immunity NAD Challenge

Claim: Species-level or category-level immunity claim

Science gap: Strain-specific evidence not available; surrogate markers cited as clinical outcomes

Lesson: NAD will ask for the strain-specific RCT. Produce it or change the language

"Natural" / "No Artificial" Class Action

Claim: "All natural" or "no artificial ingredients" on a product with a processing aid or BE ingredient

Science gap: Scale-up ingredient swap not routed to claim review

Lesson: Every spec-sheet change is a claims-register event

Ultra-Processed Food (UPF) Litigation

Claim: “Healthy,” “natural,” or wellness-oriented positioning on highly processed products.

Science gap: Isolated nutrient claims used to support broader health positioning despite overall formulation or processing profile concerns.

Lesson: Wellness positioning is increasingly evaluated against the total product profile, not individual ingredients or nutrient claims alone.

Heavy Metals / Contaminant Litigation

Claim: “Healthy,” “organic,” or child-focused products alleged to contain lead, cadmium, arsenic, or other contaminants.

Science gap: Finished-product contaminant testing and supply-chain controls not aligned with marketing positioning or evolving state expectations.

Lesson: contaminant control programs increasingly function as substantiation assets.

Three Takeaways

If you leave with nothing else, leave with these three principles | They apply to every claim, every channel, and every team.



Substantiation Is Both a Science Decision and a Legal Decision

A defensible claim clears two bars at once: the science supports it *and* the law can defend it. Either alone fails. The dossier must satisfy both, simultaneously.



Regulatory Belongs at Concept Stage, Not Mock-Up Review

The costliest claim failures happen when regulatory meets the label at mock-up, after the science, copy, and packaging are locked. Bring them in at the concept gate.



The Dossier IS the Product

Undocumented is indefensible. The claims register isn't a formality. It's the legal foundation of the product. Every channel, every reformulation, every external message must trace to a substantiated entry in the dossier.

Resources and Contacts

Everything you need to continue the work after this session — regulatory dockets, enforcement guidance and direct contacts for science and legal questions.

01

FDA "Healthy" Rule Docket

Updated food-group model; effective April 28, 2025

02

FDA FOP Rule Docket

FDA-2024-N-2910 — front-of-pack Nutrition Info box

03

FTC Health Products Compliance Guidance

The operative standard for health-related claim substantiation

04

FTC Endorsement Guides

Influencer and material-connection disclosure requirements

05

NBFDS · California SB 343 · EU Green Claims Directive · NAD Case Database

State dye-law tracker available on request

LinkedIn

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Regulatory compliance, enforcement defense, claim substantiation strategy

Questions after the session? Reach out directly.
Science and law work best together, and so do we.